SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 231 of 1977 (YEAR: 1978)

CORAM: M.H. BEG, Y.V. CHANDRACHUD, P.N. BHAGWATI, V.R. KRISHNA IYER, ET AL.

Maneka Gandhi
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Constitution of India, Passports Act, 1967
Sections:	Article 21, Article 14, Article 19

JUDICIAL HEADNOTE & SUMMARY

Expanded Article 21, establishing that procedure depriving liberty must be 'just, fair, and reasonable', linking Articles 14, 19, and 21 as the interlocked Golden Triangle.

RATIO DECIDENDI

The Court held that: Expanded Article 21, establishing that procedure depriving liberty must be 'just, fair, and reasonable', linking Articles 14, 19, and 21 as the interlocked Golden Triangle. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Maneka Gandhi v. Union of India (Writ Petition (Civil) No. 231 of 1977) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, Passports Act, 1967, particularly Article 21, Article 14, Article 19. Expanded Article 21, establishing that procedure depriving liberty must be 'just, fair, and reasonable', linking Articles 14, 19, and 21 as the interlocked Golden Triangle.

OPERATIVE ORDER

ORDER: Decided